

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

Contracting Activity: NAVSUP FLCSD

Identification of Agency: USS THEODORE ROOSEVELT CVN 71

2. Nature and/or Description of the Action Being Approved

This sole source justification is to procure (7) Yorkie Pro Wireless Intrusion Detection System, manufactured by Berkeley Varitronics Systems (BVS). This justification is based on BVS is the original equipment manufacturer (OEM) and the only known source for this product.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

The required product is the Yorkie Pro, a handheld wireless intrusion detection system (WIDS). This device is designed for wireless security audits and for detecting and locating Personal Electronic Devices (PEDs). The Yorkie Pro is capable of detecting a wide range of wireless signals, including Cellular (3G/4G/5G), Wi-Fi (2.4 GHz & 5 GHz), Bluetooth, i

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FY 2026		0.00	0.00
Subtotals		0.00	
		Total	

4. Statutory Authority Permitting Other Than Full and Open Compe

41 U.S.C. 1903 as implemented by FAR 13.106-1(b)(1)(i) One Source Reasonably Available

Additional Information Regarding Statutory Authority if Applicable

Market research was conducted to identify potential alternative products. While other companies offer cell phone detectors (e.g., PocketHound, Wolfhound), none provide th all-in-one detection capabilities of the Yorkie Pro, particularly the ability to detect the full range of wireless protocols (Cellular, Wi-Fi, BT, BLE) and covert trackers like AirTags i handheld unit. The combination of these features in one portable device is unique to the Yorkie Pro.

Procurement Request/Solicitation/Purchase Order Number: R212476006Q399

Control Number:

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required c date/period of performance

The required product is the Yorkie Pro, a handheld wireless intrusion detection system (WIDS). This device is designed for wireless security audits and for detecting and locating Personal Electronic Devices (PEDs). The Yorkie Pro is capable of detecting a wide range of wireless signals, including Cellular (3G/4G/5G), Wi-Fi (2.4 GHz & 5 GHz), Bluetooth, i Delivery date0 5/10/2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE

Yes

1. Restrictive Rights

No
2. Exclusive Licensing Agreements

Yes

The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.

The item or service is only available from the Original Equipment Manufacturer (OEM), or th authorized distributor or technical representative for the OEM.

Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

OR

Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this doc there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RES SOURCE, should be left blank

Yorkie-Pro wireless intrusion detector was designed and manufactured and calibrated/repared exclusively by Berkeley Varitronics Systems, Inc. of Metuchen, NJ (Sole Source) as the only provider of the capabilities in a single unit. that All BVS wireless test equipment products are purchased direct from our factory. There is only one price for military, and OEM customers.

3. Other Reasons

No

Provide details on mission impact if requirement is not solicited from only one source

B. BRAND NAME

No

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product made by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs

C. UNUSUAL AND COMPELLING URGENCY

No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine process would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

- 1. Date on which the requirement was first identified:
- 2. Required delivery date/period of performance: 02/14/2026 to 02/14/2026
- 3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, and the circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.
- 4. If appropriate, include any additional pertinent information:

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

[Redacted Signature]

Planning documents

[Redacted Signature]

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval of this document.

Contracting Officer's Signature

[Redacted Signature]

LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officer's signature below represents approval of this document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval